ACKNOWLEDGEMENT OF DEBT AND PAYMENT ARRANGEMENT

This document does two things. First, you confirm in writing how much you owe. Second, we agree a payment plan you can afford.

Read it before you sign, or ask for it to be read to you. You may take it away to think about it or to get advice, and you may ask any question you like. Nobody may ask you to sign a document that has blank spaces in it.

If you sign this and keep to it, we add no further charges and we take no legal steps against you.

1. THE PARTIES

The Lender	Detail
Registered name	Quickserve Financial Services CC
Trading name	QuickServe Cashloan
Company registration number	CC/2026/01904
Physical address	3403 Danger Ashipala Street, Swakopmund, Namibia
Telephone and WhatsApp	+264 81 281 9840
Email	erastusmatheus3@gmail.com
Represented by	**[SIGNATORY FULL NAME]**, **[CAPACITY]**

The Borrower	Detail
Full name	**[BORROWER FULL NAME]**
Namibian ID number	**[ID NUMBER]**
Physical street address, which is also the address for notices and legal documents	**[BORROWER STREET ADDRESS, TOWN, NAMIBIA]**
Postal address	**[POSTAL ADDRESS]**
Mobile number	**[MOBILE NUMBER]**
Email	[BORROWER EMAIL OR "NONE"]
Employer	**[EMPLOYER NAME]**
Staff or payroll number	**[STAFF NUMBER]**
Workplace address	**[WORKPLACE ADDRESS]**
Next of kin and contact number	**[NEXT OF KIN FULL NAME]** , **[MOBILE NUMBER]**

1.1 In this document, "I", "me" and "my" mean the Borrower. "The Lender", "we" and "us" mean QuickServe Cashloan.

2. THE LOAN THIS IS ABOUT

Item	Detail
Loan reference	**[LOAN REFERENCE]**
Date the loan agreement was signed	**[DD/MM/YYYY]**
Date the loan amount was paid out	**[DD/MM/YYYY]**
Loan amount paid out	N$ **[AMOUNT]**
Original due date	**[DD/MM/YYYY]**
Number of signed extension addenda	**[NUMBER]**
Date of the Final Letter of Demand, if one was sent	**[DD/MM/YYYY]**
Date of this document	**[DD/MM/YYYY]**

3. THE AMOUNT I OWE

3.1 The balance is made up as follows, calculated to **[DD/MM/YYYY]** :

Item	Amount
Loan amount still owing	N$ **[AMOUNT]**
Interest charged on the loan	N$ **[AMOUNT]**
Service fee charged on the loan	N$ **[AMOUNT]**
Extension charges under signed extension addenda	N$ **[AMOUNT]**
Default interest charged to date	N$ **[AMOUNT]**
Total charged	N$ **[AMOUNT]**
Less: all payments received from me to date	N$ **[AMOUNT]**
THE ACKNOWLEDGED AMOUNT	**N$ [AMOUNT]**

3.2 I, **[BORROWER FULL NAME]**, Namibian ID number **[ID NUMBER]**, acknowledge that I am indebted to the Lender in the sum of **N$ [AMOUNT]** (**[AMOUNT IN WORDS] Namibian Dollars and [NUMBER] cents**), which amount is due, owing and payable. In this document that sum is called *the acknowledged amount*.

3.3 I admit the acknowledged amount without any condition. I have no counterclaim against the Lender and no right of set-off, and I raise no defence to it. The only exception is the protection in clause 6.4, which I keep: if any part of the amount is ever found to exceed what the law allows a microlender to charge, I do not owe that part.

3.4 I have checked the figures in 3.1 against my own records, and I agree they are correct. I received a free statement of account showing every charge and every payment before I signed.

3.5 The Lender owes me nothing further under the loan and will advance no further money. This document is not a new loan.

4. MY PROMISE TO PAY

4.1 I promise to pay the acknowledged amount of **N$ [AMOUNT]** to the Lender in the instalments set out in clause 5.

4.2 If I do not keep to clause 5, the whole balance still unpaid becomes due and payable at once, subject to the notice steps in clause 8.

5. THE PAYMENT PLAN

5.1 I will pay as follows:

Instalment	Date due	Amount	Balance after payment
1	**[DD/MM/YYYY]**	N$ **[AMOUNT]**	N$ **[AMOUNT]**
2	**[DD/MM/YYYY]**	N$ **[AMOUNT]**	N$ **[AMOUNT]**
3	**[DD/MM/YYYY]**	N$ **[AMOUNT]**	N$ **[AMOUNT]**
4	**[DD/MM/YYYY]**	N$ **[AMOUNT]**	N$ **[AMOUNT]**
5	**[DD/MM/YYYY]**	N$ **[AMOUNT]**	N$ **[AMOUNT]**
6	**[DD/MM/YYYY]**	N$ **[AMOUNT]**	N$ **[AMOUNT]**
Total		**N$ [AMOUNT]**	**N$0.00**

5.2 The first instalment is due on **[DD/MM/YYYY]** and the last on **[DD/MM/YYYY]**. The total of the instalments equals the acknowledged amount exactly. Nothing is added.

5.3 Each instalment must reach the Lender on or before the date shown. If a due date falls on a Saturday, Sunday or public holiday, payment on the next business day is on time.

5.4 I will pay as follows:

Method	Details
Bank transfer or EFT	**[BANK NAME]**, account name **[ACCOUNT NAME]**, account number **[ACCOUNT NUMBER]**, branch code **[BRANCH CODE]**
Reference to use	**[LOAN REFERENCE]**
Cash	3403 Danger Ashipala Street, Swakopmund, Namibia, during **[OFFICE HOURS]**
Debit order, if ticked and a signed mandate is attached	**[TICK IF APPLICABLE]**
Send proof of payment to	WhatsApp +264 81 281 9840 or email erastusmatheus3@gmail.com

5.5 If a debit order is used, it will be collected through a payment system registered with the Bank of Namibia, on the dates in clause 5.1 only. Cancelling the debit order does not cancel this arrangement or the debt, but I may cancel it and pay by another method after telling the Lender in writing.

5.6 I may pay more than an instalment, or settle the whole balance early, at any time. There is no penalty for doing so, and paying early reduces what I owe.

6. INTEREST AND CHARGES FROM NOW ON

6.1 For as long as I keep to this arrangement, the Lender adds **no further interest, no further service fee and no further charge of any kind**. The acknowledged amount is fixed. Every rand I pay

reduces it.

6.2 If I break this arrangement as described in clause 8, the Lender may charge default interest on the amount still outstanding from the date of the breach. Default interest is not more than 5% of that amount, and may be charged for not more than three months in total. After three months, no further default interest is added.

6.3 Interest and charges on this debt can never grow to more than the loan amount still outstanding. Lawyers call this the *in duplum* rule. In plain words, the charges stop running once they equal the loan money still owed.

6.4 The Lender may not charge more than the maximum finance charges the law allows a microlender to charge. If any amount in this document is ever found to exceed that maximum, the excess is not owed and must be refunded to me.

7. HOW EACH PAYMENT IS APPLIED

7.1 Every payment I make reduces the acknowledged amount, rand for rand.

7.2 In its own books the Lender records each payment first against the interest and service fees on the loan, and then against the loan amount, exactly as my loan agreement provides. That internal record does not change the acknowledged amount, the size of any instalment, or the date I finish paying.

7.3 If default interest is ever charged under clause 6.2, payments are applied first to that default interest and then to the acknowledged amount.

8. IF I MISS A PAYMENT

8.1 If I cannot make an instalment, I will contact the Lender before the due date on +264 81 281 9840 or erastusmatheus3@gmail.com. Missing one payment is not automatically the end of this arrangement.

8.2 This arrangement is broken if an instalment is more than **[NUMBER]** days late and I have not agreed a new date with the Lender in writing.

8.3 If it is broken, the Lender will send me a written notice at my address in clause 1, giving me **[NUMBER]** business days to bring the arrangement back on track.

8.4 If I do not do so within that time, the whole balance still unpaid becomes due at once. The Lender may then hand the account to a debt collector or an attorney, or issue a summons. The Lender will tell me in writing before it hands the account over.

8.5 The Lender may agree to change the instalment dates or amounts. Any such change is valid only if it is in writing and signed by both of us, unless it reduces what I owe.

9. WHAT THIS DOES TO THE THREE-YEAR TIME LIMIT

9.1 Under the Prescription Act 68 of 1969, an ordinary debt in Namibia falls away after three years if nothing happens on it. That three-year period is called prescription.

9.2 By signing this document I admit that I owe the acknowledged amount. In law, that admission interrupts prescription. The three-year period starts running afresh from the date I sign, and afresh again from each new payment date set in clause 5.

9.3 This is written here plainly so that I understand it. It is a real consequence of signing, and I sign knowing it.

9.4 If a court gives judgment against me for this debt, the period becomes thirty years instead of three.

10. SALARY DEDUCTIONS AFTER JUDGMENT — YOUR CHOICE, NOT A CONDITION

10.1 An emoluments attachment order is a court order under section 65J of the Magistrates' Courts Act 32 of 1944. It instructs an employer to deduct an amount from an employee's salary and pay it to the creditor. It can only be granted **after** a court has given judgment.

10.2 **You do not have to agree to this.** This payment arrangement is available to you whether you tick the first box or the second, and we will not treat you differently either way.

10.3 If you do agree, you are giving written consent in advance to such an order being issued **if, and only if,** a court later grants judgment against you for this debt. You are **not** consenting to judgment itself. You keep every right to defend any claim brought against you in court.

10.4 The amount of any such deduction is limited to what the court allows.

10.5 This is not an instruction to my employer. The Lender will not ask my employer to deduct anything from my salary unless a court orders it.

My choice	Tick one	My initials
I **DO** consent to an emoluments attachment order if judgment is granted	**[TICK]**	**[INITIALS]**
I **DO NOT** consent to an emoluments attachment order	**[TICK]**	**[INITIALS]**

11. CREDIT BUREAU

11.1 Where the Lender reports to a credit bureau, it reports the payment record on this account, as my loan agreement provides — both good and poor records.

11.2 When I have paid the acknowledged amount in full, the Lender will give me a paid-up letter free of charge, without my having to ask, and — if it has reported this account to a credit bureau — will report the settlement to that bureau within **[NUMBER]** business days.

11.3 I may ask the bureau for my own credit profile and ask for anything incorrect to be corrected. If the Lender has reported something incorrect, it will correct it free of charge.

12. MY RIGHT TO A STATEMENT

12.1 I may ask the Lender at any time for a statement of account showing every charge raised, every payment received and the balance outstanding. The first copy is free. A duplicate copy costs no more than N$2.00 per page.

13. WHEN I FINISH PAYING

13.1 The Lender will give me a paid-up letter, free of charge and without my asking, within **[NUMBER]** business days of the final payment.

13.2 Any debit order for this account will be cancelled with effect from that date, and no further debits will be presented.

13.3 The credit bureau record will be updated as set out in clause 11.2.

13.4 Any original document of mine that the Lender holds will be returned to me and I will sign for it.

14. MY DECLARATIONS

14.1 No document I have signed in connection with this debt was blank or incomplete when I signed it.

14.2 The Lender does not hold, and has never asked to hold, my bank card, my PIN, my original Namibian ID, my original passport or my original driver's licence. Section 23(1)(f) of the Microlending Act 7 of 2018 forbids a microlender from doing so.

14.3 The terms of this document were explained to me in **[LANGUAGE]**, which is a language I understand. Interpreter used, if any: **[INTERPRETER FULL NAME]**.

14.4 I read this document myself, or it was read to me, before I signed it. Tick one: read it myself **[TICK]** / it was read to me **[TICK]**.

14.5 I received a complete copy of this document, free of charge, at the time I signed it.

14.6 Everything I have told the Lender about my income, my other debts and my circumstances is true and complete.

14.7 No promise, assurance or condition outside this written document forms part of our agreement.

15. ADDRESS FOR NOTICES AND LEGAL DOCUMENTS

15.1 I choose the physical street address given for me in clause 1 as my *domicilium citandi et executandi*. That Latin phrase simply means the address at which any notice, letter or legal document may be delivered to me. Delivery there counts as delivery to me, whether or not I am present.

15.2 That address is a physical street address in Namibia. It is not a post box.

15.3 I may change it only by written notice to the Lender. The change takes effect ten (10) business days after the Lender receives the notice, and the new address must also be a physical street address in Namibia.

15.4 Notices other than legal documents may also be sent to me by email, SMS or WhatsApp using the details in clause 1. They are treated as received on the day they are sent, unless the sender receives a delivery failure message.

15.5 The Lender chooses the physical address in clause 1 as its address for the same purposes.

16. WHICH COURT

16.1 I consent, in terms of section 45 of the Magistrates' Courts Act 32 of 1944, to the Magistrates' Court having jurisdiction to hear any claim under this document, even if the amount claimed is more than that court's usual limit. This keeps the cost of any proceedings down for both of us.

16.2 Any claim will be brought in the Magistrates' Court for the district in which I live or work.

17. GENERAL

17.1 My loan agreement, any signed extension addendum and this document together record the whole agreement between us about this debt. Where this document differs from the loan agreement about the amount owing or the dates for payment, this document applies.

17.2 No change to this document is valid unless it reduces what I owe, or it is in writing and signed by both of us.

17.3 If any clause is found to be unlawful or unenforceable, the rest of the document continues to apply.

17.4 The law of the Republic of Namibia governs this document.

17.5 This document is signed in two originals — one for me and one for the Lender.

Signed at **[PLACE]** on **[DD/MM/YYYY]**.

The Borrower	
Signature	.....
Full name	**[BORROWER FULL NAME]**
Namibian ID number	**[ID NUMBER]**
Date	**[DD/MM/YYYY]**
Place	**[PLACE]**

The two witnesses below confirm only that they saw the Borrower sign this document. They take on no liability for the debt.

Witness 1		**Witness 2**	
Signature	.....	Signature	.....
Full name	**[WITNESS FULL NAME]**	Full name	**[WITNESS FULL NAME]**
ID number	**[ID NUMBER]**	ID number	**[ID NUMBER]**
Date	**[DD/MM/YYYY]**	Date	**[DD/MM/YYYY]**

For the Lender	
Signature	……
Full name	**[SIGNATORY FULL NAME]**
Capacity	**[CAPACITY]**
Date	**[DD/MM/YYYY]**
Place	**[PLACE]**

Revenue stamp

Affix the revenue stamp for the original of this document in the space below, and cancel it by signing across it.

Revenue stamp	**[SPACE FOR REVENUE STAMP]**
Cancelled by	……
Date	**[DD/MM/YYYY]**